RUTENDO MUNYENGETERWA
versus
TAKUDZWA MUBAIWA

HIGH COURT OF ZIMBABWE
TSANGA J
HARARE; 18 June 2025

Unopposed Divorce (Motion Court)

Plaintiff in person
Defendant not in attendance by consent

TSANGA J:

Section 7(5) of the Matrimonial Causes Act [*Chapter 5:13*] allows for consent papers between the parties by permitting the court to make orders in accordance with a written agreement regarding the division of assets and maintenance upon divorce. The consent paper is therefore the written agreement in which the parties settle issues such as division of matrimonial property, maintenance of a spouse where necessary and maintenance and custody arrangements for children. The court then incorporates the consent paper into its order when granting the divorce.

Despite guidelines on what is expected in papers placed before the court on the family unopposed roll, every Thursday the court still finds itself raising issues on the content of consent papers. One such recurring issue is failure to capture the details of maintenance in those cases where parties have some ongoing arrangement known to themselves but not to the court granting the divorce.

In this instance the parties were married and are parents to three minor children. They have agreed on the dissolution of the marriage and have further agreed that the Plaintiff shall have primary custody of the minor children. The consent paper as regards these issues is captured as follows:

> "2. CUSTODY
>
> The Defendant to be awarded custody of the three minor children namely (redacted by court):

XM (02/12/19)
YM (27/12/21)
ZM (11/07/23)

3. ACCESS

The Plaintiff to be granted access to the minor child during weekends and school holidays."

The consent paper placed before the Court is silent on maintenance obligations. This court accordingly raises concern regarding compliance with the legal duty to ensure adequate provision for the children's upkeep. Maintenance is not a matter of private waiver or informal understanding. It is a legal obligation imposed upon parents to ensure that children are properly provided for in respect of their basic needs, education, and medical care. A consent paper, though contractual in nature between the parties, acquires judicial force once incorporated into a decree of divorce. It must therefore be clear, certain, and enforceable, particularly where it concerns minors. The Court cannot and will not sanction a divorce order that leaves the financial welfare of children uncertain or dependent on informal goodwill between parties.

The inclusion of maintenance provisions in a consent paper is of fundamental importance. It ensures that the financial responsibilities of both parents are clearly defined and capable of enforcement should default occur.

An unopposed divorce does not mean the court automatically grants the decree. Even where a divorce is unopposed, the court is still required to be guided by the provisions and principles of the Matrimonial Causes Act. It must be satisfied not only that a valid ground for divorce has been established, but that proper arrangements have been made for any children, and that any orders regarding maintenance and property distribution are just and equitable.

Section 10 of the Matrimonial Causes Act [*Chapter 5:13*] in particular safeguards the welfare of children by requiring the court to ensure that proper provision has been made for their custody and maintenance before granting a decree of divorce, judicial separation, or nullity of marriage. Against the backdrop of this provision, it is therefore necessary to emphasise that the court cannot accept silence on children's maintenance as it has an independent duty to protect the interests of the children. A consent paper must clearly state who is responsible for the children's upkeep and how food, school fees, clothing, and medical care will be paid. This is so even where the children are currently being supported. Child maintenance is a right of the child, not a bargaining issue between parents. Parents cannot "opt out" of it by agreement if it leaves the child unprotected. The Court also emphasises that

vague arrangements, such as agreements to "assist as necessary" or to "share responsibility as agreed from time to time," are inadequate, as they are neither enforceable nor protective of the children's welfare. Everything in such type of clauses is dependent on future goodwill or cooperation. Clarity is necessary on who pays what; how much they are supposed to pay; when and how the payments are to be made . There is also a need to address who physically cares for the children and who has responsibility for major costs such as school and medical expenses.

Whilst the parties herein are self-actors who use behind the scenes lawyers, even represented parties often present consent papers that omit maintenance where parties have agreed. It would appear that some lawyers are shy to be overly inquisitive where parties inform them that they have an ongoing arrangement. Even if the parents already have an informal arrangement, the court's preference is that it be clearly written down, and made part of the official court order as this avoids future disputes and makes enforcement possible if one party stops paying. The court has a legal duty to safeguard children's welfare and it cannot simply approve a divorce settlement that leaves children's support vague or undocumented.

In short, even in an unopposed divorce, the court's role is to ensure the children are financially protected, even if the parties think they can omit to mention the details because of an existing arrangement between them.

Accordingly the matter is removed from the roll for the parties to address the issue of maintenance in their consent papers and for proper arrangements to be recorded.

TSANGA J:……